

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                   |                                     |                                                                                                                                                                                                                                             |
|---------------------------------------------------|-------------------------------------------------------------------|-------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Simon Wang                       | Team:<br>Team # 1                                                 | CCRB Case #:<br>201005501           | <input checked="" type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 04/23/2010 10:25 PM   | Location of Incident:<br>corner of § 87(2)(b) and § 87(2)(b)<br>█ | 18 Mo. SOL<br>10/23/2011            | Precinct:<br>101                                                                                                                                                                                                                            |
| Date/Time CV Reported<br>Mon, 04/26/2010 11:15 PM | CV Reported At:<br>CCRB                                           | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Mon, 04/26/2010 10:48 AM                                                                                                                                                                                      |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
| █                  | █    | █            |
| █                  | █    | █            |

| Witness(es) | Home Address |
|-------------|--------------|
| █           | █            |
| █           | █            |
| █           | █            |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. POM Edward Moore | 31535  | 937131 | 101 PCT |

| Witness Officer(s)            | Shield No | Tax No | Cmd Name |
|-------------------------------|-----------|--------|----------|
| 1. POM William Unverzagt      | 03861     | 933432 | 101 PCT  |
| 2. SGT Frank Dichristina      | 03634     | 915605 | 101 PCT  |
| 3. POM Christophe Dalessandro | 21293     | 936420 | 101 PCT  |

| Officer(s)           | Allegation                                                              | Investigator Recommendation |
|----------------------|-------------------------------------------------------------------------|-----------------------------|
| A . POM Edward Moore | Abuse: PO Edward Moore stopped § 87(2)(b) █                             | A . Substantiated           |
| B . POM Edward Moore | Abuse: PO Edward Moore threatened § 87(2)(b) █ with the use of force.   | B . Unsubstantiated         |
| C . POM Edward Moore | Discourtesy: PO Edward Moore spoke obscenely and rudely to § 87(2)(b) █ | C . Unsubstantiated         |
| D . POM Edward Moore | Force: PO Edward Moore pointed his gun at § 87(2)(b) █                  | D . Substantiated           |
| E . POM Edward Moore | Force: PO Edward Moore struck § 87(2)(b) █ with a gun.                  | E . Unsubstantiated         |

### Case Summary

On April 23, 2010, Sgt. Frank Dichristina of the 101<sup>st</sup> Precinct called IAB and reported the following incident. On April 26, 2010, the complaint was received at the CCRB via referral number 10-20754. On the same day, § 87(2)(b) filed a complaint with the CCRB on behalf of her son, § 87(2)(b) concerning the same incident. On April 23, 2010, at approximately 10:25 p.m., § 87(2)(b) was stopped at the intersection of § 87(2)(b) and § 87(2)(b) in Queens by PO Edward Moore and PO Christopher D'Alessandro. The following allegations resulted:

- **Allegation A – Abuse of Authority:** PO Edward Moore stopped § 87(2)(b) § 87(2)(g), it is recommended that **Allegation A** be **Substantiated**.
- **Allegation B – Abuse of Authority:** PO Edward Moore threatened § 87(2)(b) with the use of force.
- **Allegation C – Discourtesy:** PO Edward Moore spoke obscenely and rudely to § 87(2)(b).
- **Allegation E – Force:** PO Edward Moore struck § 87(2)(b) with a gun. § 87(2)(g), it is recommended that **Allegations B, C and E** be closed as **Unsubstantiated**.
- **Allegation D – Abuse of Authority:** PO Edward Moore pointed his gun at § 87(2)(b) § 87(2)(g). it is therefore recommended that **Allegation D** be **substantiated**.

### Results of Investigation

#### Civilian Statements

##### Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male, § 87(2)(b). He has black hair and brown eyes. § 87(2)(b).

#### CCRB Statement

On June 7, 2010, § 87(2)(b) was interviewed at the CCRB. § 87(2)(b) was accompanied by his civil attorney § 87(2)(b).

On April 23, 2010, at approximately 10:20 p.m., § 87(2)(b) was walking on § 87(2)(b) in Far Rockaway with his friends § 87(2)(b) § 87(2)(b) (identified by investigation as § 87(2)(b) § 87(2)(b) (identified by investigation as § 87(2)(b) § 87(2)(b), and § 87(2)(b) (last names unknown), amongst others. § 87(2)(b)'s friends were all males of the same approximate age. § 87(2)(b) was walking behind his friends from the intersection of § 87(2)(b) and § 87(2)(b) to a house party. § 87(2)(b) denied smoking marijuana or tobacco cigarettes that evening. § 87(2)(b) was wearing a grey sweater with a green and blue button shirt underneath that. He was also wearing blue jeans and black boots. § 87(2)(b) did not have any bags or containers with him.

Near the intersection of § 87(2)(b) and § 87(2)(b) § 87(2)(b) heard a car door slam shut behind him. § 87(2)(b) did not turn to see the source of the sound, though in his Notice of Claim, it was noted that he saw a black SUV. All of his friends immediately ran away in separate directions. None of his friends said anything and nobody told them to stop at that point. § 87(2)(b)

did not know who was approaching, but was frightened and ran south on § 87(2)(b) away from the sound of the car door with the intention of running home. § 87(2)(b) was the only one of his friends to run in that direction. After running approximately three house-lengths, § 87(2)(b) heard a male yell behind him, “Stop, before I fucking shoot you.” § 87(2)(b) immediately stopped running and raised his hands. § 87(2)(b) heard the sound of footsteps approaching, so he turned his head over his left shoulder to look behind him, but did not turn his body. He briefly saw PO Moore (white male, bald, 5’5”, muscular, pullover hoodie, light blue shirt) holding a silver revolver with both hands pointed at § 87(2)(b)’s head. PO Moore was alone in the area. When § 87(2)(b) turned his head, he was almost immediately struck with the barrel of the gun on his left temple. § 87(2)(b) stated that the mouth of the gun barrel made contact with his temple and PO Moore forced the gun against his skull in a pushing motion, similar to a punch. § 87(2)(b)’s temple was cut, and he began to bleed from the wound. § 87(2)(b) was about to collapse, but was also tackled by PO Moore, who made contact with his lower back, and grabbed his waist and torso. § 87(2)(b) described the officer’s actions as a “football tackle.” § 87(2)(b) landed on his stomach. Once § 87(2)(b) was on the ground, PO Moore knelt down next to him and placed one handcuff on his right wrist. The officer saw § 87(2)(b) bleeding and asked him, “Why did you run?” § 87(2)(b) answered that he was scared. PO Moore replied, “That’s bullshit.” PO Moore then removed the handcuff, and ordered § 87(2)(b) to sit down on the sidewalk. He then gave § 87(2)(b) a tissue and said, “Wipe your fucking face.” There was blood on § 87(2)(b)’s face, as well as on the front of his sweater and parts of his jeans.

PO Moore did not search or frisk § 87(2)(b) and did not place handcuffs on § 87(2)(b) again. § 87(2)(b) also did not observe PO Moore search the area or use his flashlight to shine on the ground. § 87(2)(b) did not see how PO Moore contacted the other officers, but after approximately fifteen minutes of waiting, a black Lincoln sedan pulled up to them and two officers exited the vehicle. An officer identified by the investigation as PO Christopher D’Alessandro (white male, 6’0”, fat, bald head, beard, black *New Orleans Saints* football team jersey) was the driver of the vehicle. § 87(2)(b) was not able to see the other officer too closely, and could only describe him as a white male who was 5’7” tall. The three officers gathered together some distance away from § 87(2)(b) and had a discussion, which § 87(2)(b) could not hear. § 87(2)(b) asked if he could go home, but an officer replied that he could not, because an ambulance would be called.

Once the ambulance arrived, the EMT asked § 87(2)(b) what happened. § 87(2)(b) told her the entire series of events. § 87(2)(b) was transported to § 87(2)(b) in the ambulance. There were no officers inside the ambulance with § 87(2)(b). § 87(2)(b) did not see PO Moore at the hospital, but Sgt. Dichristina, PO D’Alessandro and PO Unverzagt were present. § 87(2)(b) was treated at the hospital and given stitches for the cut to his head.

After receiving treatment, a nurse placed § 87(2)(b)’s bloody sweater in a plastic bag. § 87(2)(b) sat in a chair with the bag on his lap and fell asleep. When he awoke, the plastic bag was missing, and the officers were gone. § 87(2)(b)’s mother arrived after that. § 87(2)(b) was then placed in a patient room. Approximately four unidentified uniformed officers who were not present during the incident, entered one by one into the room to check on § 87(2)(b). They watched and observed § 87(2)(b) but did not speak to him. On § 87(2)(b), § 87(2)(b) went to § 87(2)(b) § 87(2)(b) to have his stitches removed. § 87(2)(b) learned from his friends that other police officers chased them.

### Statements to Medical Providers

§ 87(2)(a) PBH §18(6)

### Statements in Notice of Claim

§ 87(2)(g)

**Witness:** § 87(2)(b)

- § 87(2)(b) is a third party witness with no prior relationship to § 87(2)(b). She is a female of unknown age and race.

On April 23, 2010, at approximately 10:26 p.m., § 87(2)(b) called 911 to report that officers were chasing individuals outside her home at § 87(2)(b) § 87(2)(b). On January 7, 2011, the undersigned investigator spoke to § 87(2)(b) by phone.

On April 23, 2010, § 87(2)(b) heard people talking in loud voices outside her home. She went to her window and saw there were approximately fifteen young individuals outside her home. A black unmarked vehicle pulled up to them and two officers exited the vehicle; the driver remained inside. The group of teenagers immediately started running away. The two officers on foot began chasing the group. The black vehicle went into reverse very quickly southbound on § 87(2)(b). § 87(2)(b) was concerned because the officers were outnumbered, so she called 911. § 87(2)(b) was observing the incident from her dining room window, which looks out onto § 87(2)(b). She couldn't hear if the officers said anything. The foot chase continued around the corner and § 87(2)(b) could no longer see what happened. She did not witness any officer catch anyone.

### **Attempts to Contact Witnesses**

§ 87(2)(b), § 87(2)(b)'s mother, provided a sworn statement to the CCRB, but it was determined that § 87(2)(b) was not present at the scene of this incident and she did not provide any substantive information. As a result, § 87(2)(b)'s statement is not included in this report.

§ 87(2)(b) provided incomplete names for his companions on the night of incident, and could not provide any of their contact information. Stop and Frisk reports prepared as a result of this incident identified § 87(2)(b) and § 87(2)(b) as two individuals who were stopped by PO Unverzagt and Sgt. Dichristina during this incident. Call request letters sent to their addresses were not returned undelivered by the US Postal Service, but went unanswered. All searches for phone numbers yielded no results. They were therefore not able to be contacted.

### **NYPD Statements:**

#### **Subject Officer: PO Edward Moore**

- *PO Moore is a § 87(2)(b) white male, § 87(2)(b). He has brown hair and blue eyes.*
- *On April 23, 2010, PO Moore was assigned to an anti-crime unit with Sgt. Frank Dichristina, PO Christopher D'Alessandro and PO William Unverzagt. They worked in plainclothes in an unmarked black Chevrolet Impala.*

### **Stop and Frisk Report**

PO Moore made a Stop and Frisk report which stated that § 87(2)(b) was stopped § 87(2)(b). PO Moore provided furtive movements, throwing plastic bag to the ground and changing direction at the sight of officers as the basis for the stop. The report lists furtive movements and running while holding waistband as the basis for a frisk. The report indicated that PO Moore placed hands on § 87(2)(b) placed § 87(2)(b) on the ground, pointed his firearm and handcuffed § 87(2)(b) (encl.12a-b).

### **AIDED Report**

PO Moore made an AIDED report in which he indicated that § 87(2)(b) received a laceration to his head as a result of falling to the ground (encl.13a-e).

### **Memo Book**

On April 23, 2010, PO Moore noted in his memo book that at 10:24 p.m. he and his partners encountered a disorderly group at the corner of § 87(2)(b) and § 87(2)(b). A black male dropped a plastic bag to the ground with unknown contents. A foot pursuit was engaged with a male. At 10:25 p.m., one male was stopped in front of § 87(2)(b) § 87(2)(b), and identified as § 87(2)(b). At 10:26 p.m., an evidence search was conducted for the surrounding area. At 10:34 p.m., there were negative results. At 10:35 p.m., an ambulance was called for § 87(2)(b). At § 87(2)(b) § 87(2)(b) was taken to § 87(2)(b) hospital. At 11:20 p.m., § 87(2)(b) was notified by phone.

### **CCRB Statement**

On October 15, 2010, PO Edward Moore of the 101<sup>st</sup> Precinct was interviewed at the CCRB.

On April 23, 2010, at approximately 10:25 p.m., PO Moore and his partners were driving on § 87(2)(b) in Queens. At the intersection of § 87(2)(b) and § 87(2)(b) they encountered a group of approximately fifteen individuals on § 87(2)(b). PO Moore was seated in the front passenger seat, PO D'Alessandro was the driver, and PO Unverzagt and Sgt. Dichristina were in the back seat. The individuals were walking in the street as well as on the sidewalk, and were speaking loudly amongst themselves.

As the officers drove by, PO Moore saw an individual he could only describe as a black male, who was walking at the center of the group, reach into the front of his pants and retrieve a clear plastic bag. PO Moore could not tell whether the male had reached into a pocket or his waistband. The male then threw the clear plastic bag to the ground on the sidewalk. PO Moore did not see what, if anything, was in the bag. The individual was directly alongside the officers, one car width to PO Moore's left side. PO Moore exited the vehicle, and the members of the group immediately began to run in separate directions. None of the officers had verbally identified themselves as police officers nor had they issued any commands or instructions to anyone. PO Moore focused on § 87(2)(b) and pursued him on foot. PO Moore did not know whether § 87(2)(b) was the individual he observed with the plastic bag. When the undersigned asked PO Moore what led him to pursue § 87(2)(b) out of all of the fleeing individuals, PO Moore answered that Sgt. Dichristina and PO Unverzagt were each chasing two other individuals, and the officers were simply attempting to stop the dispersing group as best they could. Once the crowd dispersed, PO Moore could not keep track of which direction the individual with the plastic bag ran. § 87(2)(b) fled southward on § 87(2)(b) and turned onto § 87(2)(b) going west. PO Unverzagt and Sgt. Dichristina pursued their suspect or suspects in other directions, and went out of visual contact from PO Moore. PO D'Alessandro followed PO Moore in the vehicle.

As § 87(2)(b) fled, he was running with one hand holding the front of his waistband. Because PO Moore was behind § 87(2)(b) he could not see what § 87(2)(b) was holding. PO Moore suspected that § 87(2)(b) may have been holding a weapon, so he drew his gun, a silver Smith and Wesson semi-automatic pistol, from his holster and ran with it in his right hand at his side pointed down. As PO Moore chased § 87(2)(b) he yelled repeatedly, "Police! Stop!" PO Moore never pointed his gun at § 87(2)(b) nor did he threaten to fire upon § 87(2)(b). PO Moore was asked by the undersigned whether he instructed § 87(2)(b) to show his hands at any point, and PO Moore repeated that he yelled "Police! Stop!" § 87(2)(b) did not stop running, but PO Moore caught up to him at the middle of the block on § 87(2)(b) between § 87(2)(b) and § 87(2)(b). PO Moore tackled him in full stride with his gun still in his right hand. PO Moore made contact with § 87(2)(b)'s upper back and wrapped his arms around § 87(2)(b)'s upper arms, at shoulder height. PO Moore then used his weight to force § 87(2)(b) forward and down onto his face and stomach. § 87(2)(b) did not resist being handcuffed and no further force was needed. PO Moore denied that his gun ever made contact with § 87(2)(b) and he denied striking § 87(2)(b) on the head. § 87(2)(b) had a cut to his face as a result of hitting the pavement, but PO Moore could not recall whether the injury was to his cheek or to his forehead. PO Moore asked § 87(2)(b) why he ran and § 87(2)(b) replied, "I was scared." PO Moore denied saying to § 87(2)(b) "That's bullshit." PO Moore asked § 87(2)(b) why he was running with his hands on his waistband. § 87(2)(b) replied that his pants were falling down. PO Moore denied that he said, "Wipe your fucking face." PO Moore frisked the area around § 87(2)(b)'s waistband to search for a weapon, but found nothing.

PO D'Alessandro had followed PO Moore closely in his vehicle and was in close proximity as PO Moore tackled § 87(2)(b). PO D'Alessandro exited his vehicle and assisted PO Moore after

§ 87(2)(b) was already handcuffed. PO Moore left § 87(2)(b) in handcuffs with PO D'Alessandro while he returned to the location where the bag was dropped and searched the ground as well as the path which § 87(2)(b) ran for any contraband. He found nothing and returned to § 87(2)(b). PO Moore took off § 87(2)(b)'s handcuffs, and determined that an ambulance was needed. An ambulance was called, and PO Unverzagt accompanied § 87(2)(b) to the hospital. PO Moore obtained the phone number for § 87(2)(b)'s mother from § 87(2)(b) and called her. Because no contraband was found, § 87(2)(b) was not arrested, and an AIDED form was prepared.

The undersigned presented PO Moore with a copy of the Stop and Frisk report for the stop of § 87(2)(b). PO Moore explained that he chose "gun pointed" as the type of force used because it was the only option on the checklist that best described his actions. He reiterated that he did not point his gun at § 87(2)(b).

**Witness Officer: PO Christopher D'Alessandro**

- PO D'Alessandro is a § 87(2)(b) white male § 87(2)(b). He has brown hair and brown eyes.
- On April 23, 2010, PO D'Alessandro was assigned to anti-crime with Sgt. Frank Dichristina, PO Edward Moore and PO William Unverzagt. They worked in plainclothes in an unmarked vehicle.

**Memo Book**

PO D'Alessandro noted in his memo book that on April 23, 2010, at approximately 10:24 p.m. at the corner of § 87(2)(b) and § 87(2)(b) there was a disorderly group. One black male dropped a plastic bag with unknown contents. PO Moore and PO Unverzagt engaged in a foot pursuit and PO D'Alessandro followed PO Moore in the RMP. At 10:25 p.m. § 87(2)(b) was stopped in front of 24-03 § 87(2)(b). At 10:26 p.m. an evidence search was conducted from § 87(2)(b) and § 87(2)(b) to § 87(2)(b). At 10:34 p.m. the evidence search resulted in negative results. At 10:35 p.m., an ambulance was called for § 87(2)(b). At § 87(2)(b), § 87(2)(b) was taken to § 87(2)(b) hospital.

**CCRB Statement**

On November 10, 2010, PO Christopher D'Alessandro was interviewed at the CCRB. § 87(2)(g)

§ 87(2)(b) was among three or four males in a subset of the group, walking approximately five to ten feet behind thirty other individuals. As the officers were directly alongside these individuals, PO Moore stated out loud, "He just threw something to the ground." PO D'Alessandro saw an individual drop a clear plastic bag. He did not see what if anything was in the plastic bag. PO D'Alessandro could not recall the description of the individual who dropped the bag, but believed PO Moore was chasing that individual and as a result decided to follow PO Moore in his vehicle.

§ 87(2)(b) was holding the front of his waistband as he ran, with his left arm straight to the side and his right arm locked in front of him holding something in the front of his waistband. PO Moore drew his weapon as soon as § 87(2)(b) began to run in that fashion. PO Moore ran with the gun in his hand, and was yelling repeatedly "Police." PO Moore never stopped running and did not take a shooting stance or point his weapon at § 87(2)(b). He ran with his gun was at his side. PO Moore never issued a threat to fire upon § 87(2)(b) and never stated, "Stop before I fucking shoot you." PO Moore caught up to § 87(2)(b) after chasing him for approximately three or four house-lengths. § 87(2)(b) had not stopped running when he was caught. PO Moore tackled § 87(2)(b).

§ 87(2)(b) with his gun still in hand. PO Moore made contact with § 87(2)(b)'s upper back, but did not hit or strike § 87(2)(b)'s head. § 87(2)(b) fell face-forward to the ground with PO Moore on top of him. PO Moore handcuffed § 87(2)(b) before PO D'Alessandro arrived and exited his vehicle. PO D'Alessandro observed a bleeding laceration on § 87(2)(b)'s face, which he believes § 87(2)(b) sustained from the fall. PO Moore never said, "Wipe your fucking face." PO Moore ran his hands on the outside of § 87(2)(b)'s waistband, but did not search him. PO Moore then stated that he would walk back to the location where the chase began and search for the object. PO D'Alessandro remained with § 87(2)(b). § 87(2)(b) asked why he had been tackled and PO D'Alessandro stated, "I don't understand why you ran." § 87(2)(b) replied, "Because we had what we had." PO D'Alessandro replied, "I don't know what that means." The search for the plastic bag lasted ten minutes and no bag was found. § 87(2)(b) was not arrested because of the lack of evidence.

## **Medical Records**

### **Ambulance Report**

§ 87(2)(a) PBH §18(6)

§ 87(2)(a) PBH §18(6)

§ 87(2)(a) PBH §18(6)

§ 87(2)(a) PBH §18(6)

§ 87(2)(a) PBH §18(6)

§ 87(2)(a) PBH §18(6)

## **NYPD Documents**

### **Stop and Frisk Reports**

Sgt. Dichristina made Stop and Frisk reports for two individuals who refused to identify themselves. They were both stopped at 10:24 p.m. on April 23, 2010 at the intersection of § 87(2)(b) and § 87(2)(b). Both individuals were suspected of criminal possession of a weapon because they changed direction at the sight of officers, made furtive movements and held their waistbands. They were both frisked, but not searched and the only force used against them was physical contact (encl. 18a-d).



PO Unverzagt made Stop and Frisk reports for his stop of § 87(2)(b) and § 87(2)(b). They were stopped at 10:30 p.m. on April 23, 2010 in front of § 87(2)(b). Both were suspected of criminal possession of a weapon because of furtive movements, the time and the location corresponding to high crime. Both were frisked but not searched (encl. 20a-b). None of these reports indicated criminal possession of marijuana as a suspected offense.

### **SPRINT F16319 and 911 CD**

After § 87(2)(b) called 911, at approximately 10:26 p.m. the dispatcher issued a 10-13 (call for assistance). An officer from PO Moore's anti-crime unit immediately interrupted and stated that assistance was not necessary. A request for an ambulance was made by anti-crime seven minutes later (encl. 27a-d).

### **Status of Civil Proceedings**

- § 87(2)(b) and § 87(2)(b) have filed a Notice of Claim with the City of New York on § 87(2)(b), claiming and seeking \$8,000,000 as redress (encl. 9a-1). As of July 6, 2011, there have been no official hearings.

### **Civilian Criminal History**

- As of April 11, 2011, Office of Court Administration records reveal no criminal convictions for § 87(2)(b).

### **Civilian CCRB History**

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (encl. 3a).

### **Subject Officer CCRB History**

- PO Moore has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 2a).

## **Conclusion**

### **Identification of Subject Officers**

PO Moore stated that he pursued § 87(2)(b) alone on foot with his weapon drawn and tackled him. § 87(2)(g)

### **Allegations not pleaded**

PO Moore admitted that he caused injury to § 87(2)(b) by tackling him, but maintained that he did so to prevent § 87(2)(b) from evading pursuit. § 87(2)(g)

§ 87(2)(b) PO Moore stated that he frisked § 87(2)(b) for a weapon after tackling him, but § 87(2)(b) denied that in his statements to the CCRB. § 87(2)(g)

### **Investigative Findings and Recommendations**

#### **Allegation A – Abuse of Authority: PO Edward Moore stopped § 87(2)(b)**

The officers encountered a large group of males of a similar age walking down the street. PO Moore observed an unidentified individual amongst that group retrieve a clear plastic bag from the front of his waistband and throw it on the ground. PO Moore did not know whether § 87(2)(b)

was that individual, nor did he know what, if anything, the clear plastic contained. The officers, who were all in plainclothes, exited their unmarked vehicle. Before officers could verbally identify themselves as police or issue any commands, the group of individuals dispersed in separate directions. § 87(2)(b) likewise ran, but was the only individual to run in that particular direction. PO Moore singled out § 87(2)(b) and immediately engaged in a foot pursuit with him.

Police may approach a civilian and conduct a common-law inquiry if they possess founded suspicion that criminal activity is afoot. People v. DeBour, 40 N.Y.2d 210, 215 (1976). Police must possess the greater quantum of knowledge which constitutes reasonable suspicion before they can stop a person. People v. Martinez, 80 N.Y.2d 444, 447 (1992). Under New York law, flight in conjunction with other factors evincing criminal activity can provide justification to elevate a common-law inquiry to a forcible stop. People v. Pines, 99 N.Y.2d 525, 527 (2002). However, before flight can justify a pursuit, the police must be clearly identified or the defendant has to recognize that he is being questioned by police officers. People v. Collado, 72 A.D.3d 614, 615 (1st Dep't 2010).

§ 87(2)(g)

§ 87(2)(b) PO Moore was dressed in plainclothes and driving an unmarked car. He did not identify himself as a police officer or issue any instructions before § 87(2)(b) ran. § 87(2)(b) stated that he did not know who was approaching the group but ran out of fear after his friends fled following the sound of a car door slamming. § 87(2)(g)

§ 87(2)(b) It is, therefore, recommended that **Allegation A** be **Substantiated**.

**Allegation B – Abuse of Authority: PO Edward Moore threatened § 87(2)(b) with the use of force.**

**Allegation C – Discourtesy: PO Edward Moore spoke obscenely and rudely to § 87(2)(b)**

§ 87(2)(b) PO Moore denied that he yelled to § 87(2)(b) “Stop before I fucking shoot you.” PO Moore further denied that after he tackled § 87(2)(b) he said, “That’s bullshit” and “Wipe your fucking face.” § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations B** and **C** be closed as **Unsubstantiated**.

**Allegation D – Abuse of Authority: PO Edward Moore pointed his gun at § 87(2)(b)**

§ 87(2)(b) alleged that at the end of the chase, he turned around to see PO Moore approaching him pointing a silver gun at his head. PO Moore stated that § 87(2)(b) appeared to be holding the front of his waistband as he ran, causing PO Moore to fear for his safety and draw his gun from its holster. PO Moore maintained that he ran with the gun in his hand, but never pointed his gun at § 87(2)(b). However, in his Stop, Question and Frisk report, he indicated that he had indeed pointed his gun (encl.12a-b). During his CCRB statement, PO Moore explained the discrepancy by stating that of the checkbox options in the “force used” section of the Stop, Question and Frisk report, there is no option for “gun drawn” leaving “gun pointed” as the only option which best

described his actions. PO Moore then reiterated that he did not point his weapon at § 87(2)(b). A review of Stop, Question and Frisk reports showed that there are, in fact, a checklist box options for “gun drawn” in both the handwritten and computerized versions of the report (encl. 1n-o).

§ 87(2)(g)

Officers are granted broad discretion to draw and point their firearm when they have a reasonable fear for their safety or the safety of others. Police Department v. Gliner, OATH Index No. 955/00 (Sept. 6, 2000). The totality of the circumstances should be used when determining if the display of a weapon rises to the level of misconduct. People v. Finlayson, 76 A.D. 2d 670 (2d Dep’t 1980).

§ 87(2)(g)

PO Moore stated that since he was running behind § 87(2)(b) he could not see what if anything § 87(2)(b) may have been holding in front of him as he ran. PO Moore also stated that § 87(2)(b) did not stop at any point of the pursuit, nor did he turn to menace or threaten him. PO Moore stated that he only yelled repeatedly “Police! Stop!” rather than any clear instruction for § 87(2)(b) to show his hands.

It is therefore recommended that **Allegation D be Substantiated.**

**Allegation E – Force: PO Edward Moore struck § 87(2)(b) with a gun.**

Although PO Moore admitted that he tackled § 87(2)(b) with his gun in hand, he denied striking § 87(2)(b) with his gun. PO Moore stated that the injury to § 87(2)(b)’s forehead resulted from him hitting his head on the sidewalk.

§ 87(2)(g)

§ 87(2)(g)

As such it is recommended that **Allegation E be Unsubstantiated.**

Team: 1

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|               |           |                   |       |
|---------------|-----------|-------------------|-------|
| Investigator: | _____     | <u>Simon Wang</u> | _____ |
|               | Signature | Print             | Date  |

|             |                 |       |       |
|-------------|-----------------|-------|-------|
| Supervisor: | _____           | _____ | _____ |
|             | Title/Signature | Print | Date  |

|           |                 |       |       |
|-----------|-----------------|-------|-------|
| Reviewer: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |

|           |                 |       |       |
|-----------|-----------------|-------|-------|
| Reviewer: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |